IMPARTIAL ANALYSIS OF MEASURE R

Under California law, the City Treasurer is a mandatory officer of a city government. Under the Sutter Creek Municipal Code, the City Treasurer prepares written reports and accountings of bank deposits and disbursements and performs other financial duties as set by state law.

California law allows city treasurers to be elected or appointed. If the position is elected, city treasurers serve for terms of four years.

For many years, the Sutter Creek City Treasurer position has been an elected one. The elected City Treasurer must reside and be registered to vote within Sutter Creek. He or she is not required to have minimum training or qualifications to hold the position.

Measure R would amend Section 2.10.020 of the Sutter Creek Municipal Code to make the City Treasurer position an appointed, rather than elected, position. If the measure is approved, the ability to hire, fire, and supervise the City Treasurer would reside exclusively in the City Council, or any officer the Council designates, such as the City Manager.

A “yes” vote on Measure R would make the City Treasurer an appointive position. If a majority of voters approve the measure, Sutter Creek’s City Treasurer would become a city employee subject to Sutter Creek personnel policies and procedures in and after December 2026.

A “no” vote on Measure R would mean the City Treasurer position would remain an elected position. If a majority of voters vote against the measure, Sutter Creek voters would continue to choose the City Treasurer for four-year terms.

/s/ Derek P. Cole
Sutter Creek City Attorney